

The Intellectual Property Act, No. 36 of 2003, of Sri Lanka, governs the law, registration, control, and administration of intellectual property.

Part I: Administration of the Act

1. The Key Office and Officials

- **Official Name and Certification:** The Act, certified on November 12, 2003, is formally cited as the Intellectual Property Act, No. 36 of 2003.
 - **The National Intellectual Property Office of Sri Lanka (The Office):** This Office is the **sole office** in Sri Lanka responsible for the registration and administration of Industrial Designs, Patents, Marks, and other matters covered by the Act. All legally recognized registers for these areas are maintained there under the Director-General's supervision.
 - **The Director-General (DG):** A Director-General of Intellectual Property must be appointed. The DG is responsible for implementing the Act, controlling and superintending the registration and administration of Industrial Designs, Patents, Marks, and other specified matters.
 - **Policy and Promotion:** The DG must follow the government's general policy on intellectual property and any related directions from the Minister. The DG is also tasked with promoting **national awareness** of Intellectual Property (including copyright) through exhibitions, seminars, publications, and by encouraging organizations that protect and administer these rights.
 - **Supporting Staff:** The Act allows for the appointment of Directors and Deputy Directors, who operate under the DG's control and authority, as well as other necessary officers and servants.
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Part II: Copyright and Related Rights

2. What is Protected (Works)

Works are protected if they are **original intellectual creations** in the literary, artistic, and scientific domains. Protection is granted solely by the fact of their creation, regardless of their mode of expression, content, quality, or purpose.

Examples of Protected Works Include:

- **Literary/Scientific:** Books, computer programs, articles, speeches, lectures, sermons, illustrations, maps, and scientific sketches.
- **Artistic/Dramatic:** Dramatic or dramatic-musical works, choreographic works, musical compositions, works of architecture, works of fine art (drawing, painting, sculpture), photographic works, and works of applied art.
- **Media:** Audiovisual works (series of related images that impart motion, with or without sound) and stage productions.

Also Protected (Derivative Works):

- Translations, adaptations, arrangements, and other modifications of existing works.
- Collections of works and databases, provided their selection, coordination, or arrangement is **original**.

What is NOT Protected:

- Any **idea, procedure, system, method of operation, concept, principle, discovery, or mere data**, even if embodied in a work.
- Official texts of a legislative, administrative, or legal nature (or their official translations).
- **News of the day** published or broadcast.

3. Economic Rights (Section 9)

The owner of the copyright has the **exclusive right** to perform or authorize various actions in relation to the whole work or a substantial part of it. These actions include:

- **Reproduction** (making one or more copies in any form, including electronic storage).
- **Translation, Adaptation, or Transformation.**
- **Public Distribution** (sale, export, or otherwise).
- **Rental** (applies to audiovisual works, sound recordings, computer programs, databases, or musical notation) (but rental rights do not apply if the computer program is not the essential object of the rental).
- **Importation** of copies (even if those copies were made with the owner's authorization).
- **Public Display, Public Performance, Broadcasting, or other Public Communication.**

Note on Distribution: Once a copy of a work is lawfully made, the owner of that specific copy, or someone authorized by them, is entitled to **sell or otherwise dispose of that copy** without needing the copyright owner's authority (this reflects the principle of exhaustion of rights).

4. Moral Rights (Section 10)

These rights belong to the author personally, independently of their economic rights, and remain even if they no longer own the economic rights.

The author has the right:

- To have their name **indicated prominently** on copies and in connection with any public use.
- To use a **pseudonym** or choose not to have their name indicated.
- To **object to any distortion, mutilation, or modification** of the work that would be harmful to their honor or reputation.

Transfer and Waiver: Moral rights **cannot be transferred** during the author's lifetime, but they can be passed on after death by will or operation of law. An author may waive these rights, but the waiver must be in writing and clearly specify the right(s) waived and the applicable circumstances.

5. Duration of Copyright (Section 13)

The protection period depends on the type of work:

Type of Work	Duration of Protection (Economic and Moral Rights)
General Rule (Single Author)	The author's life plus 70 years from death.
Work of Joint Authorship	The life of the last surviving author plus 70 years from their death.
Collective Works / Audiovisual Works	70 years from first publication (or 70 years from the making if unpublished within 70 years).
Anonymous / Pseudonymous Works	70 years from first publication.
Works of Applied Art	25 years from the date of making the work.

Note: All periods run until the end of the calendar year in which they would otherwise expire.

6. Ownership of Economic Rights (Section 14)

- **Original Owner:** Generally, the author who created the work.
- **Collective Works:** The person or entity who initiated and directed the creation.
- **Works Created in Employment or Commissioned:** Unless a contract states otherwise, the **employer** owns the economic rights for works created in the course of employment. For commissioned works, the person who **commissioned** the work is the original owner, unless a contract states otherwise.
- **Audiovisual Works:** The **producer** is the original owner, unless a contract provides otherwise. However, co-authors maintain their economic rights in their contributions if those contributions can be used separately.

7. Acts of Fair Use and Exceptions (Sections 11 & 12)

The use of a work for purposes such as **criticism, comment, news reporting, teaching, scholarship, or research** constitutes fair use and is **not an infringement**.

Courts will assess fairness by considering:

1. The purpose and character of the use (e.g., commercial nature vs. non-profit educational).
2. The nature of the copyrighted work.

3. The amount and substantiality of the portion used.
4. The effect of the use on the potential market or value of the copyrighted work.

Specific acts permitted without the copyright owner's authorization include:

Permitted Act	Conditions / Restrictions	Citation
Private Reproduction	A single copy made by a person, from a lawful copy, exclusively for personal purposes (exceptions apply, such as architecture or substantial parts of books/databases/computer programs).	
Quotation	A short part of a published work may be reproduced if compatible with fair practice and the source/author's name is indicated.	
Educational Reproduction	Short parts reproduced for teaching by illustration, or reprographic reproduction of articles/extracts for face-to-face teaching in non-profit institutions, provided the act is isolated. Source/author must be indicated.	
Library/Archive Copying	Single reprographic copies made for a person's study/research, or copies made for preservation/replacement of a lost or destroyed copy if unavailable under reasonable conditions.	
Reporting Current Events	Reproduction or broadcast of articles on current topics (unless expressly reserved), or reproduction of a work seen/heard during an event, to the extent justified by reporting needs. Source/author must be indicated.	
Computer Program Copying	A lawful owner may make a single reproduction or adaptation necessary for the use of the program or for archival/replacement purposes .	
Personal Importation	A physical person may import a copy of a work for their own personal purposes .	
Public Display	Display of originals or copies, provided it is not done using mechanical/electronic devices (like film, TV image) and the work was previously published or the copy was legally transferred by the author/owner.	
Educational Performance	Performance or display for teaching purposes by government or non-profit educational institutions in classrooms.	

8. Related Rights (Performers)

The Act also contains provisions for **Related Rights**, including the protection of rights for performers, producers of sound recordings, and broadcasting organizations.

- **Performers' Rights:** A performer has the exclusive right to carry out or authorize the **broadcasting or other communication to the public** of their performance (or a substantial part of it), unless that communication is made from an existing fixation of the performance